

TENTATIVE RULINGS**6/11/2026****02:00 PM**

100	Corelogic, Inc. vs. Underwriters at Lloyds Syndicate 4711 Asp Subscribing To Policy No. B0713medte2001034 2025-01521725	1. Demurrer to Complaint 2. Motion to Strike Complaint 3. Case Management Conference OFF CALENDAR BASED ON NOS; COURT WILL SET AN OSC RE DISMISSAL ON SETTLED CASE APPROXIMATELY 45 DAYS OUT BY SEPARATE MO.
103	Blakeslee vs. Daniel Ansel as Co-administrator of Estate of Joseph Anthony Tena 2019-01046095	Motion for Continuance of Action by Successor in Interest Carol Reichelt’s motion to substitute as successor in interest to deceased Plaintiff Rodney Reichelt is GRANTED . (See Code Civ. Proc., §§ 377.20-377.21, 377.30-377.33; see also ROA #493, passim, Exh. A.) The Court hereby ORDERS “Carol Reichelt, as the successor in interest to Rodney Reichelt,” substituted in for Plaintiff Rodney Reichelt. Moving party shall give notice.
104	Harrop vs. Nationstar Mortgage, LLC. 2025-01520293	1. Motion to Compel Arbitration 2. Case Management Conference Defendant Rocket Mortgage, LLC s/b/m Nationstar Mortgage LLC d/b/a Mr. Cooper’s motion to compel arbitration and stay proceedings is DENIED AS MOOT ON THE CONDITION that Plaintiffs Faith Harrop and Cindy Dang properly file and serve, within 14 days of notice of this ruling, a first amended complaint that asserts only representative PAGA claims and no individual PAGA claims. As an initial matter, the Court notes that Plaintiffs belatedly filed their opposition to the motion on 6/2/2026 rather than by 5/29/2026. Defendant contends in its reply that it was “prejudiced by Plaintiffs’ late filing . . . given the substantially shorter time it had to prepare and file its reply brief.” (ROA #32, Reply, at p. 3.) But Defendant has not provided more detail on the alleged prejudice, including in counsel’s supporting declaration. (See ROA #34, Gonda Decl., passim.) Instead, Defendant filed a 5-page substantive reply brief, in which Defendant contends that the Court “ <i>may</i> simply disregard Plaintiffs’ Opposition.” (<i>Id.</i> , emphasis added.) Given that Defendant was able to file a substantive reply brief, the Court exercises its discretion and considers, in the interests of justice, Plaintiffs’ belated opposition. That said, Plaintiffs’ counsel is ADMONISHED to comply with all rules and procedures applicable to this Court with future filings.

The Court also **OVERRULES** Defendant's objections to Plaintiffs' use of electronic service on Defendant. Defendant contends that Plaintiffs' use of electronic service is inappropriate and ineffective because "[t]he parties do not have an e-service agreement in this case, a fact that Nationstar's counsel has communicated to Plaintiffs' counsel on more than one occasion." (Reply at p. 2, citing Gonda Decl., ¶ 2.) However, Code of Civil Procedure (CCP) section 1010.6, subdivision (b)(2) requires that "[a] person represented by counsel, who has appeared in an action or proceeding, shall accept electronic service of a notice or document that may be served by mail, express mail, overnight delivery, or facsimile transmission." Moreover, California Rules of Court, rule 2.251(c)(3) provides that "a party or other person that is required to file documents electronically in an action must also serve documents and accept service of documents electronically from all other parties or persons." Further, Orange County Superior Court Local Rule 352 provides that "documents filed by represented parties in all limited, unlimited, and complex civil actions must be filed electronically and allow for service electronically, unless the Court excuses parties from doing so." Here, the Court has not issued any order excusing Defendant from being required to serve and accept service electronically. Therefore, as Defendant is represented by counsel and has made an appearance in the case, Defendant is required to accept service electronically. Defense counsel is also **ADMONISHED** to comply with all rules and procedures applicable to this Court.

Substantively on the instant motion, Defendant has moved to compel arbitration of Plaintiffs' individual PAGA claims. (See generally ROA #11 [Mot. P&A], 13 [Not. of Mot. & Mot.].) Plaintiffs have since taken the position that they are withdrawing or dismissing any individual PAGA claims and seek to pursue representative-only PAGA claims. (ROA #30, Opp.) Accordingly, Plaintiffs contend that Defendants' motion should be denied as moot. (*Id.*)

Although Plaintiffs contend that they "filed their *Notice to Withdraw/Dismiss Individual PAGA Claims* on February 24, 2026" (Opp. at p. 1, emphasis original), no such filing appears in the Court's register of actions. Nevertheless, it appears that Plaintiffs served Defendant with this notice on or about 2/25/2026. (See Gonda Decl., ¶ 3.) Plaintiffs have also maintained their intent to "dismiss" their individual PAGA claims in the parties' joint CMC statement filed on 5/28/2026 (ROA #26) and in their opposition to the instant motion (ROA #30).

While the Court agrees with Defendant that procedurally, Plaintiffs have not yet effectively amended their complaint to state only representative PAGA claims, Plaintiffs are nevertheless entitled to amend their complaint once as a matter of right without leave of court before defendant's answer, demurrer, or motion to strike is filed. (CCP, § 472, subd. (a); see also *Doe v. Second Street Corp.* (2024) 105 Cal.App.5th 552, 578 [rejecting argument that filing motion to compel arbitration is functional equivalent of filing answer for purposes of CCP section 472(a), and also rejecting argument that filing of motion to compel arbitration results in an automatic stay of all proceedings under CCP section 1281.4 before any noticed motion to stay is heard].)

Setting aside these procedural issues, Defendant also substantively contends that headless PAGA claims are not permitted under Labor Code section 2699. In support, Defendant primarily relies upon *Leeper v. Shipt* (2024) 107 Cal.App.5th 1001 and *Williams v. Alacrity Solutions Group, LLC* (2025) 110 Cal.App.5th 932.

However, Defendant also acknowledges that there is contrary authority, including *CRST Expedited, Inc. v. Superior Court* (2025) 112 Cal. App. 5th 872, which has held that “headless PAGA actions were among the choices allowed the LWDA’s representatives.” (*CRST, supra*, at p. 883.) Although *CRST* interpreted an earlier version of Labor Code section 2699, the relevant language upon which the *CRST* court based its holding has remained substantially similar.

As Defendant also acknowledges, *Leeper*, *Williams*, *CRST*, and other similar cases are on review by the California Supreme Court to address the following issues: “1.) Does every Private Attorneys General Act (Lab. Code, § 2698 et seq.) (PAGA) action necessarily include both individual and non-individual PAGA claims, regardless of whether the complaint specifically alleges individual claims? 2.) Can a plaintiff choose to bring only a non-individual PAGA action?” (*Leeper v. Shipt* (Cal., Apr. 16, 2025) 566 P.3d 234.)

Thus, as it stands, until the Supreme Court rules on *Leeper*, there is a split of authority among the Courts of Appeal, and the trial court may and must make a choice between the conflicting decisions. (See *Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 456.) The Court finds the reasoning of *CRST*, as well as *Galarsa v. Dolgen California, LLC* (2025) 115 Cal.App.5th 1, to be more persuasive than *Leeper* and *Williams*. As *CRST* and *Galarsa* are directly applicable here, Plaintiffs may properly allege representative-only PAGA claims.

Therefore, the Court **DENIES** Defendant’s motion to compel arbitration **ON THE CONDITION that Plaintiffs properly file and serve, within 14 days of notice of this ruling, a first amended complaint that asserts only representative PAGA claims and no individual PAGA claims.**

In so ruling, the Court acknowledges that the state of the law is uncertain. Thus, should the Supreme Court rule contrary to *CRST* and *Galarsa* and adopt the *Leeper* holding, Defendant may bring a further motion to compel arbitration seeking the same relief based on “new law.” As such, this ruling is without prejudice pending a ruling from the Supreme Court.

Because of the uncertainty in the law, Defendant also requests in its reply a stay of this action pending the Supreme Court’s decision in *Leeper*. (Reply at p. 6.) Defendant has cited no authority requiring the Court to stay the action simply because the law is unsettled. According to research based on 2023-2024 data, the average time from completion of briefing to the California Supreme Court’s issuance of a decision is 450 days. (See California Constitution Center, “The California Supreme Court’s average time from briefing to oral argument 2023-24,” SCOCAblog (June 3, 2025),

		available at https://scocablog.com/the-california-supreme-courts-average-time-from-briefing-to-oral-argument-2023-24/.) This Court also takes judicial notice of the Supreme Court’s docket in <i>Leeper</i>, which shows that the case was fully briefed as of 3/11/2026, and oral argument has not yet been set. Accordingly, the Court also DENIES Defendant’s request to stay this case pending the California Supreme Court’s resolution of <i>Leeper</i>. Moving party shall give notice.
105	Valenzuela vs. Texas De Brazil Rancho Corporation 2023-01356359	Motion for Final Approval of Class Action and PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiffs Kayla Jade Valenzuela, Brittany Marticorena, Daniel Madrid, Olivia Matley, Aaliyah Taylor, Caitlin Croxford, and Priscila Pena’s Motion for Final Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On 10/13/2023, Plaintiffs Kayla Jade Valenzuela, Brittany Marticorena, Daniel Madrid, Olivia Matley, Aaliyah Taylor, Caitlin Croxford, and Priscila Pena, individually and on behalf of all similarly situated aggrieved employees, filed a class action complaint against Defendants Texas de Brazil Rancho Corporation, Texas de Brazil Carlsbad Corporation, Texas de Brazil Concord Corporation, Texas de Brazil Fresno Corporation, Texas de Brazil Irvine Corporation, Texas de Brazil Oxnard Corporation, and Texas de Brazil Corporation. (ROA #2.) On 12/21/2023, as a matter of right, Plaintiffs filed the operative first amended complaint (FAC). (ROA #23.) The FAC alleges various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (<i>Id.</i>) On 4/4/2025, Plaintiffs filed a Motion for Preliminary Approval of Class Action and PAGA Settlement. (ROA #123.) On 8/14/2025, at the 2nd hearing on the matter, the Court granted the motion. (ROA #147.) On 9/10/2025, the Court entered the order granting preliminary approval. (ROA #158.) On 3/10/2026, Plaintiffs filed the instant Motion for Final Approval of Class Action and PAGA Settlement. The motion seeks approval of the Class Action and PAGA Settlement Agreement (“Settlement” or “Settlement Agreement”), which provides for the settlement of Plaintiffs’ class and PAGA claims for the non-reversionary gross settlement amount (“GSA”) of \$638,737 after the triggering of the escalator clause, which increased the GSA from \$500,000 by \$138,737. The GSA includes \$63,873.70 allocated for PAGA penalties. On 4/2/2026, at the first hearing on the motion, the Court ruled that an attorneys’ fee award totaling \$191,621.10 or 30% of the GSA, constituting a 0.86 multiplier against the lodestar amount, is fair, adequate, and reasonable